

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a**

national report on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: Germany

Organization or entity responsible for the preparation of the report: Federal Foreign Office

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention²**

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☒ Yes

☐ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☒ Yes

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

As set out in the German Basic Law (*Grundgesetz*), "No one may be disadvantaged or favoured as a result of their sex, parentage, race, language, home country and origins, faith, religious or political views. No one may be disadvantaged because of their disability" (Art. 3 (3) GG). The Basic Law and the constitutions of the Länder (federal states) include a number of fundamental provisions on schools (inspection, parents' rights, compulsory schooling, religious instruction, privately maintained schools).

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☒ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

X Constitutional laws and/or legislation prohibit discrimination in education

X Regulations prohibit discrimination in education

X Policies and programmes aim to eliminate and prevent discrimination in education

X Access to justice in case of violations of the right to non-discrimination in education

X Combatting discrimination in terms of curriculum

☐ Other:

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of pupils to educational institutions*

➔ *Non-differential treatment, including of foreign nationals resident in your country*

Attendance of public schools in Germany is free of charge. There are no structural variations in the education system for men and women, or for people from different social backgrounds or origins. Compulsory education is regulated by the school laws of the Länder.

The regulations of general compulsory schooling also apply to children of asylum seekers, regardless of their immigration status or the length of their stay. Compulsory schooling for children of asylum seekers usually starts after their residential assignment to a local authority. Moreover, young refugees have the right to attend school regardless of residence status.

To ensure pupils' access to teaching aids used in lessons regardless of their economic and social circumstances, most Länder have established regulations on the provision of financial assistance to pupils for purchasing teaching aids (Lernmittelhilfe), or on their provision free of charge (Lernmittelfreiheit), depending in part on parents' income and number of children. Under these regulations, pupils are either exempt from the costs of teaching aids or only have to cover part of the costs. The funds are provided either by the local authority responsible for establishing and maintaining the schools, or by the Land (federal state) in question (Schulträger). In the majority of the Länder, pupils at public sector schools are lent textbooks and other expensive teaching aids (e.g. pocket calculators) for the duration of their use. If teaching aids become the property of pupils, parents may be required to cover a portion of the costs in some cases.

Each Land has arrangements as regards the transport of pupils to and from school. While certain differences exist as to who is entitled to use school transport and the scope of services provided, there are comprehensive provisions for the period of compulsory full-time schooling. In general, fares are reimbursed, usually for public transport, while under certain conditions a school transport service is established in its own right. The purpose is to guarantee fair opportunities for pupils from all walks of life, for urban and rural areas, non-handicapped and handicapped schoolchildren.

- 1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation guarantee equal access to education

☒ Regulations ensure equal access to all levels and types of education

☒ Policies and programmes ensure equal access to all levels and types of education

☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

Please refer to section II.1.1.

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|---|
| X Providing financial incentives and fellowships | X Providing auxiliary assistance |
| ☐ Providing positive or affirmative action measures | X Adapting education infrastructure |
| X Ensuring inclusion in mainstream schools for all learners | X Adapting curricula and methods |
| X Training teachers on inclusive education | X Providing language classes to newcomers (e.g. refugees) |
| X Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | X Eliminating administrative barriers to education ⁷ |
| X Providing re-entry programmes for young mothers | X Providing flexible learning pathways |
| X Eliminating all barriers for pregnant girls or young mothers in education | X Valuing diversity in schools |
| ☐ Other: | X Combatting stereotyping and stigmatisation |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Overarching initiatives/strategies

In recent years the Länder have made sustained efforts to establish diagnostic procedures as a basis for individual support. These include assessing language levels prior to enrolment at school, examining learning backgrounds of pupils who are starting school, establishing learning levels, comparative and orientation work, and competence analyses in different primary and lower secondary-level grades.

In 2010, the Standing Conference of the Länder Ministers of Education and Cultural Affairs (Kultusministerkonferenz/KMK) adopted a targeted support strategy for poorer-performing pupils (Förderstrategie für leistungsschwächere Schülerinnen und Schüler) which includes prevention, intervention and compensation measures. The aim of the support strategy is to significantly reduce the number of pupils not achieving a minimum competence development level by the end of their course of education. In this context particular attention is given to

⁶ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

children and to young people with a migrant background. A comprehensive report on the implementation of the strategy was published in 2017 (https://www.kmk.org/fileadmin/Dateien/veroeffentlichungen_beschluesse/2017/2017_09_14-Umsetzung-Foerderstrategie.pdf, in German), the next report is due in summer 2020.

In 2019, the Standing Conference adopted a recommendation on strengthening educational language skills in the German language (Bildungssprachliche Kompetenzen in der deutschen Sprache stärken, https://www.kmk.org/fileadmin/Dateien/pdf/PresseUndAktuelles/2019/2019-12-06_Bildungssprache/2019-368-KMK-Bildungssprache-Empfehlung.pdf, in German) with concrete practical recommendations for all schools. This recommendation provides the Länder with an orientation framework for strengthening educational language skills in the German language, which will enable them to individually design measures. To this end, the Länder have agreed on 10 principles as the basis for successfully strengthening educational language competences in the German language. In addition, the continuation of the joint Federal-Länder initiative "BiSS-Transfer" will promote the nationwide exchange and implementation of scientifically tested instruments for promoting German in schools. The Standing Conference also adopted a complementary recommendation on language-sensitive specialised lessons at vocational schools (Sprachsensibler Fachunterricht an beruflichen Schulen, https://www.kmk.org/fileadmin/Dateien/veroeffentlichungen_beschluesse/2019/2019_12_05-Sprachsensibler-Unterricht-berufl-Schulen.pdf, in German). It is dedicated to the particular challenges of promoting specialised language at vocational schools which offer diverse educational options that are designed to integrate a broad range of target groups into vocational and social life.

In 2018, a joint initiative was launched by the Federation and the Länder to promote high-performing and potentially particularly high-performing pupils (Leistung macht Schule, <https://www.leistung-macht-schule.de/>). Against the background of an education policy aimed at equal opportunities, the initiative aims to ensure the best possible learning and educational success for all the pupils concerned, irrespective of their origin, gender or social status. It focuses in particular on children and young people from educationally disadvantaged families, especially those with a migrant background, and on gender balance, especially girls in STEM subjects. The duration of the initiative is ten years. The Federation and the Länder are providing a total of 125 million euros for the initiative in equal parts. In the first five-year phase, the schools will be supported in the development of practical strategies and concepts for school and teaching development by an interdisciplinary research network financed by the federal government. The Federation is also responsible for the overall coordination of the initiative and for the scientific support of the transfer in the second phase. The Länder are responsible for the selection of schools following Land-wide calls for tenders, the supervision of schools and the Land-wide implementation of promising measures. The Länder are also developing strategies and concepts in the fields of diagnosis and counselling, as well as for the promotion of extra-curricular potential.

In 2019 the Federation and the Länder launched a programme to support schools in socio-economically disadvantaged areas (Schule macht stark, https://www.kmk.org/fileadmin/Dateien/pdf/PresseUndAktuelles/2019/2019-10-23_Schule_macht_stark_Bund-Laender-Vereinbarung.pdf, in German). The programme aims to enhance opportunities for disadvantaged pupils by addressing the challenging situation in both urban and rural areas, as well as by fostering pupils' potential and talents. For the coming ten years, the Federation and the Länder are providing a total of 125 million euros for the initiative in equal parts. Implementation in schools is scheduled to begin in the school year 2021/2022. In 2010, the German parliamentary assembly (Bundestag) adopted the so-called Education and Participation Package (Bildungs- und Teilhabepaket) which offers additional benefits in order to improve the educational opportunities of needy children and young people. The Package supports 2.5 million children and juveniles. It comprises the

following benefits: learning/study support, school supplies, the cost of school trips, lunch subsidies, and support for participating in club, cultural and holiday activities.

In 2018, the Federal Government initiated a renewal of the 2015 National Action Plan on Integration coordinated by the Federal Government Commissioner for Migration, Refugees and Integration to further enhance processes between stakeholders. The Plan is based on five phases of a typical migration and integration process: prior to migration, upon arrival, incorporation, growing together, cohesion. Together with relevant ministries, the Länder, cities, local communities and civil society, the aim is to develop key measures and projects for each phase. The process involves more than 300 stakeholders, including more than 75 migrant organizations. The result will be a collection of approximately 150 measures and projects. They form the frame of an overall integration strategy.

In this context, the Länder are prioritising in particular language support for children and young people, implementation of the Standing Conference's support strategy for poorer-performing pupils, cooperation with parents and migrant organisations, and the opening of intercultural day-care centres for children and schools. The Federation is prioritising the transition from school to in-company vocational training, improving training success rates for young people from a migrant background, increasing the share of students from a migrant background, language promotion, and educational research and reporting.

Both the Federal Ministry of Education and Research and the Länder are continuing the initiative for language promotion, language diagnostics and reading promotion, "Bildung durch Sprache und Schrift (BiSS)". In order to secure the next generation of skilled workers and to activate all potentials of young people - especially those with a migration background – for a better transition from school to work, the Federal Government, the Federal Employment Agency and the Länder together aim to continue to develop and expand the successful initiative "Abschluss und Anschluss – Bildungsketten bis zum Ausbildungsabschluss".

The National Action Plan process has shown that a dialogue format is required at the federal level in which actors from science, practice, advocacy groups, migrant organizations and government regularly come together and exchange information on the topics in the area of integration through education. Such a dialogue format for integration through education will be created and established by the Federal Ministry of Education and Research.

In the current Covid-19 crisis, methods of distance learning/e-learning are being expanded until further notice for pupils who are currently unable to attend lessons. The federal government is financing digital devices for students from disadvantaged social backgrounds with an additional amount of 500 million euros.

Special needs

In Germany, all young people with or without a disability have the right and are obliged to attend school. This includes general schools and schools tailored to students with special educational needs (special schools). The education system in Germany is built on the right of parents to determine the upbringing and education of their children, which is guaranteed by the Basic Law. The majority of Länder are striving to give pupils and their parents a choice between regular schools and special schools. On the basis of common guidelines, all Länder are working towards the goal of creating a different institutional framework geared towards inclusion, including suitable professional development offers for teachers and taking measures to adapt teacher training. Between 2014 and 2017 the Länder teacher training guidelines were revised with regard to inclusive education. Currently, the recommendations of the Standing Conference on the different areas of special needs education (hearing, learning, etc.) are being reviewed and further developed.

Please refer to the 9th German periodic report for further information on special needs education.

Gender equality

The issue of gender equality and empowerment of girls and women is addressed at both school and higher education level:

- The “National Pact for More Women in STEM Professions” (2008) brings together more than 340 partners in business, research, politics, associations, social partners and media. It aims to foster girls’ interest in STEM at school, and to increase the share of female STEM students at university and in leading positions.
- The “Klischeefrei” initiative is an alliance of more than 250 representatives from the areas of education and training, politics, business and research. The aim of the initiative is to enable young people to select their career and study path on the basis of their individual strengths and interests, free from gender stereotypes.
- A yearly “Girls’ Day” promotes girls’ interest in STEM subjects. It is complemented by a “Boys’ Day” for professions generally chosen by women. In 2019 over 130130132130,000 girls and boys visited about 17,800 companies and research institutions.
- The Programme for Women Professors (Professorinnenprogramm) was launched by the federal government and the Länder in 2007 in order to support women in their academic careers and to increase their share of professorships at German Higher Education Institutions (HEIs). It is a central instrument to promote equality between women and men in HEIs and has improved equal opportunities in the science systems in several rounds of tenders. To apply for a professorship, the universities must submit an equality concept for assessment. Applications for funding for up to three professorships can only be made once the evaluation is positive. In the third programme phase 2018-2022, the federal government and the Länder will make a total of 200 million euros available (<https://www.gwk-bonn.de/fileadmin/Redaktion/Dokumente/Papers/Professorinnenprogramm-III-2018.pdf>, in German). It is furthermore now possible to apply for funding for a fourth professorship, for which up to ten HEIs per round may apply if their equality concepts receive top ratings in the area of “Personnel development and recruitment on the way to a professorship” with the title “Equality: excellent!”. Through the funding of a fourth professorship, HEIs get strong incentives to also promote young female scientists.
- Endeavours to reduce the gender imbalance are also a criterion that governs the performance-related allocation of funds to and within HEIs. The issue of women’s adequate representation at all qualification levels plays a key role in the conclusion of target agreements between the Länder and HEIs, with a view to creating incentive for additional measures.

Content

With the [“Joint declaration of the Central Council of Jews in Germany and the Standing Conference on the Teaching of Jewish History, Religion and Culture in School”](https://www.kmk.org/fileadmin/Dateien/veroeffentlichungen_beschluesse/2016/2016_12_08-Juedische-Geschichte-Religion-Kultur-Schule-engl.pdf) (2016, https://www.kmk.org/fileadmin/Dateien/veroeffentlichungen_beschluesse/2016/2016_12_08-Juedische-Geschichte-Religion-Kultur-Schule-engl.pdf, in English) the Central Council of Jews in Germany and the Standing Conference agreed on steps toward a future-oriented and authentic discussion of Judaism in schools. This joint declaration aims to present

Judaism in schools in its diversity and authenticity, and to provide students with a lively and differentiated picture of Judaism. Awareness and recognition of the diversity and complexity of Judaism are key steps toward gaining understanding and reducing prejudice.

To support teachers in this task the Standing Conference and the Central Council have created a structured online collection of selected materials for the initial, further and ongoing training of teachers, and for use in the classroom and in projects (<https://www.kmk-zentralratderjuden.de/>, in German). The two partners are currently working on a recommendation or declaration on addressing antisemitism in schools.

Higher education

The Länder have agreed on standard conditions under which vocationally qualified applicants who do not hold a higher education entrance qualification are granted the right to enrol at a HEI (see also section II.2.4).

HEIs seek to maintain the equality of opportunity of different groups by various measures, for example:

- efforts to support women in higher education: see above;
- diversity management: special offers for various groups from abroad or from migrant families, e.g. offers from centres for international students, international offices, students' union executive committees and preparatory colleges (Studienkolleg);
- counselling and support for disabled or chronically ill students by means of suitable contact points;
- accessible facilities;
- family-friendly HEIs: a broad and flexible range of childcare facilities, flexible and family-friendly working time models;
- quality management measures for students and teachers, in which everyone can participate;
- continuing education offers for employed people, e.g. as part of the guest student programme (centre for lifelong learning).

Please refer to section II.2.10 (migrants/refugees) and to the 9th German periodic report for further initiatives.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

According to Section 1303 of the German Civil Code, a marriage should not be entered into before the parties reach the age of majority which begins at the age of eighteen. A marriage may not be entered into with a person who has not reached the age of sixteen.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Pre-primary education is not compulsory in Germany.

☐ Pre-primary education is free of charge for all: Please provide the duration:

Parental contribution obligations for pre-primary education differ at Länder level.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

X Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Children in Germany are legally required to attend a full-time school for nine or ten years.

General compulsory schooling starts on 1 August for all children having reached their sixth birthday before a statutory qualifying date. The Länder can set the qualifying date between 30 June and the end of the calendar year. General compulsory schooling involves nine years of full-time schooling (ten years in Berlin, Brandenburg, Bremen and North Rhine-Westphalia). Youths who do not attend a full-time general education school or vocational school at upper secondary level once they have completed their period of compulsory general schooling are obliged to attend a part-time vocational school (Berufsschulpflicht) which usually lasts three years, corresponding to the course duration in a recognised occupation requiring formal training. For pupils who do not attend a general school at upper secondary level or who enter training, some Länder have regulations under which pupils are required to remain in full-time education and to attend some sort of vocational school. Disabled children and youths are also required to attend school and complete their compulsory education.

Compulsory schooling involves regular attendance of lessons and other compulsory school events. Both pupils and parents are responsible for meeting this obligation, and training companies are also responsible for ensuring that their trainees fulfil their obligation to attend vocational school. The school checks attendance records and may, if necessary, enforce attendance by taking various actions with respect to the pupil, the parents or the training company.

- Is primary education available free of charge to all?

X Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Primary school attendance in Germany is available to everyone free of charge. No distinction is made between boys and girls, or persons from different social backgrounds or origins. The legal basis for primary school (Grundschule) as the first compulsory school for all children is to be found in the school laws of the Länder and the school regulations (Schulordnungen) for primary school which are enacted by the Ministries of Education and Cultural Affairs of the Länder.

For further details please refer to section II.1.1.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

X Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Attendance of public-sector secondary schools is free of charge. The range of secondary education courses in Germany includes both general and vocational education, as well as courses that combine general education and vocational training. There are no formal prerequisites for admission to the dual VET system (duales System). The amended Vocational Training Act (Berufsbildungsgesetz), which came into force on January 1st 2020, introduced a minimum remuneration for apprentices. In 2008 the Federal Ministry of Education and Research launched the Vocational Orientation Programme (Berufsorientierungsprogramm – BOP) for general schools. The objective is to offer pupils all over Germany a vocational orientation process that will enable them to develop a realistic idea of their own abilities and interests and to gather practical experience in a variety of occupational fields. Early vocational orientation and the fostering of cross-cutting core skills help ensure a seamless transition from school to the working world. The preventative approach adopted by the programme contributes towards the avoidance of training dropouts and assists in reducing the number of unplaced training applicants during the transitional phase.

For further details please refer to section II.1.1.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

X Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Please refer to the sections on compulsory schooling and on primary education.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

X Yes

- Please provide reference to the relevant laws and provisions:

According to the Youth Work Protection Act (Jugendarbeitsschutzgesetz) employment of children under the age of 15 is not allowed in Germany. This minimum age of 15 years corresponds with compulsory education of nine years of full-time schooling in most of the German Länder.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

X Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training

X Regulations prohibit discrimination in higher education, including technical and vocational education and training

X Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

The Basic Law contains several fundamental provisions on questions of education. Among others it guarantees equality before the law (art. 3, para. 1), freedom of art and scholarship, research and teaching (art. 5, para. 3), free choice of profession and the place of training (art. 12, para 1). Art. 12 in connection with art. 3 para. 1 establishes a right to equal participation in the distribution of resources that the state provides and that are limited, like study places. In addition to federal legislation, like the Framework Act for Higher Education (Hochschulrahmengesetz, HRG), legislation on the Länder level (Landeshochschulgesetze,

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

Landesgleichstellungsgesetze) is also in place in order to ensure equal access in admission of students, equal treatment and reduce disadvantages.

Access to higher education is open to everyone who has the required qualifications. Nationals from other EU Member States enjoy equal status with Germans if they have the required language skills for the respective course of study. The basic condition for admission of foreign applicants is a prior education equivalent to the German certificate that entitles the bearer to enter a HEI, or a successfully passed examination for entering a HEI.

The abovementioned Hochschulrahmengesetz and Landeshochschulgesetze also include regulations on compensating students with disadvantages and disabilities. Examination regulations must consider the special concerns of students with disabilities in order to ensure equal opportunities. Furthermore, students with disabilities or who are chronically ill may apply for further financial funding.

Please refer to section II.1.3 for further information on support measures in higher education.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

☒ Higher education is generally free of charge

☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience

☒ Higher education is accessible through financial incentives and scholarships

☐ Higher education is accessible through positive or affirmative action measures

☒ Higher education is accessible through credit transfer system between states

☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

In general, local and international students are not charged tuition fees, with a few exceptions such as fees for students who significantly exceed the regular study period or for students at private HEIs.

To enhance equal opportunity, the Federal Government grants training assistance. Eligibility for student loans is usually dependent upon parental income. It is awarded half as a grant and half as an interest-free loan. Following reform of the Federal Training Assistance Act (BAföG) in 2019, the maximum amount of monthly support for a student has risen from 735

euros to 853 euros and will rise further to 861 euros as from August 2020. The latest available figure on the number of students who receive federal training assistance was 468,000 (monthly average in 2018) – that is before the reform. Average funding in 2018 amounted to 493 euros. Students in special social need are supported in some Länder by student services (Studentenwerke) or by the HEIs themselves with loans of various amounts. In addition, a number of smaller, mostly regional private foundations support students in need. Gifted students are eligible for grants from organisations for the promotion of young talent (Begabtenförderungswerke), which as a rule are associated with the churches, the political parties, the trade unions or businesses. The Federal Government supports the work of these organisations with considerable funding; the Länder participate in the funding of the German National Merit Foundation (Studienstiftung des deutschen Volkes), the largest of the organisations for the promotion of young talent.

For foreign students and young academics, the German Academic Exchange Service (Deutscher Akademischer Austauschdienst/DAAD) offers grants for a limited study or advanced training visit at a German HEI. Furthermore, some Länder have special funds to support foreign students at the respective HEIs.

On conclusion of a course leading to a first degree, grants can be awarded for postgraduate studies based on the postgraduate support laws and ordinances of the Länder. The organisations for the promotion of young talent also provide corresponding grants.

A key role in indirect student financing is played by the 57 student services which provide reduced-price catering in refectories and cafeterias at all HEIs, as well as low-cost accommodation. In addition, childcare, psychological and social counselling, as well as social and first semester counselling are provided by the HEIs, local authorities, student services and student unions. Furthermore, there are inexpensive tickets for local public transport.

Due to the Covid-19 crisis, the lecture times for the summer semester 2020 could be arranged flexibly, and the dates for the application and admission process for undergraduate courses for the winter semester 2020/2021, as well as the start of the semester, were adjusted. In view of income lost by students due to the restrictions put on the economy to combat the spread of Covid-19, the Federal Government has pledged to bear all interest costs students would otherwise incur for a specific type of student loan awarded by a state-owned bank until the end of March 2021. This allows students to take out a maximum of 650 euros per month, irrespective of their nationality or their financial circumstances. In addition, the Federal Government has established an interim financial aid for students faced with pandemic-related financial hardship, provided with an overall budget of 100 million euro. This aid is intended to help those students – both local and foreign – who can prove that they are faced with financial hardship caused by the pandemic, who need immediate help and are unable to overcome their pandemic-related hardship by making use of other support. Students benefiting from loans, scholarships or similar in the relevant month are *not* excluded from applying for interim financial aid. Depending on the proven need, up to 500 euros per month can be paid out as a non-repayable grant. The grant is allocated monthly during a three-month period in summer 2020, i.e. applications can only be filed separately for the months June, July and August 2020. The decision on granting the interim financial aid is taken by the relevant student services on the basis of the information provided by the students.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education

and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

☒ Provision of education for persons who have not received or completed the whole period of their primary education

☒ Provision of literacy programmes

☒ Provision of appropriate learning and life-skills programmes

☒ Provision of free of charge learning opportunities

☒ Provision of flexible learning pathways

☒ Provision of professional training and qualifications

☐ Other:

- Please elaborate further on the measures taken:

Please refer to the 9th German Report for a detailed description of the responsibilities for adult education in Germany. A central principle of continuing education courses is that attendance should be voluntary. Continuing general education includes possibilities to obtain school-leaving qualifications. There is a wide range of offers for further vocational training, including adaptation and expansion of job-specific knowledge as well as career advancement (e.g. master craftsman or technician).

In 2009, the Standing Conference (KMK) adopted standard preconditions under which vocationally qualified applicants without a higher education entrance qualification obtained at school are granted the right to enter a HEI (https://www.kmk.org/fileadmin/veroeffentlichungen_beschluesse/2009/2009_03_06-Hochschulzugang-erful-qualifizierte-Bewerber.pdf, in German). In 2018 roughly 62,000 students without a higher education entrance qualification were enrolled in higher education, representing 2.2% of the student population. The 2018 figure – a new all-time high – is an increase by 35% compared to 2013. The Federation’s scholarship programme Aufstiegsstipendium, which was introduced in 2008, awards non-repayable scholarships to candidates with high vocational qualifications as an incentive to start a course of higher education. Around 12,000 scholarships have been awarded so far.

Under the competition “Getting ahead through education: Open HEIs” (Aufstieg durch Bildung: Offene Hochschulen) which was launched in 2011, the Federation and the Länder are running a programme to promote the development of practical, vocational and training-related study courses to integrate employees and professionally-qualified individuals more closely into higher education. The Länder also support the expansion of study courses and continuing training measures which accompany employment through target agreements with

HEIs.

The Federation and the Länder proclaimed a National Decade for Literacy in 2016. Its basic aim is to tackle adult reading and writing skills which are not sufficient for full participation in society. As a broad social alliance, the strategy includes, among others, the local authorities (Kommunen), trade unions, churches, the Federal Employment Agency (Bundesagentur für Arbeit/BA) and Volkshochschule associations. Industry associations and chambers of industry and commerce are also invited to participate. In 2019 the Standing Conference published an interim report on developments from 2016-2018 (https://www.kmk.org/fileadmin/Dateien/veroeffentlichungen_beschluesse/2019/2019_11_07-Nationale-Dekade-Alphabetisierung.pdf, in German).

The amended Upgrading Training Assistance Act (Aufstiegsfortbildungsförderungsgesetz/AFBG) enters into force on 1 August 2020. As a result of the most significant improvements since the Act came into force (1996) and the expansion of the support options for each individual, barriers to career advancement will be removed, thereby attracting even more people to advanced training.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

☒ Establishment of minimum norms and standards in education

☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)

☐ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

Educational standards

Educational standards for several subjects at both primary, secondary and upper secondary level were adopted by the Länder in 2003, 2004 and 2012. The envisaged educational standards in the natural science subjects biology, chemistry and physics for the Allgemeine Hochschulreife have been completed and will presumably be introduced in the school year 2021.

All standards are based on areas of competence within the individual subject. They:

- take up the basic principles of the respective subject;
- define subject-specific competences, including basic levels of knowledge that pupils should have achieved by a certain stage of their school career;
- are aimed at systematic and network-based learning, and thus follow the principle of

cumulative acquisition of competence;

- describe expected levels of performance as part of requirement profiles;
- are related to the core area of the respective subject and provide leeway for pedagogical measures taken by the schools;
- relate to a medium level of requirements;
- are illustrated by sample test questions.

Since 2009 the Länder have been examining the attainment of the educational standards by pupils at primary school and lower secondary level in a comparison between the Länder, based on assignments by the Institute for Educational Progress (Institut zur Qualitätsentwicklung im Bildungswesen/IQB). Building on PISA, the IQB comparison between the Länder for the first time reviewed centrally the extent to which the educational standards of the KMK had been achieved.

In the 2016 IQB comparison between the Länder the performance of grade 4 pupils in all Länder was examined on the basis of the educational standards of the Standing Conference in the subjects German and mathematics for the primary sector for the second time. In the subject German, in addition to reading competence, tests covered the competence areas listening and spelling, while in the subject mathematics all competence areas of the educational standards were examined. The results were published in 2017 and show a high but slowly decreasing level of performance by primary-level pupils.

The 2018 IQB comparisons between the Länder examined centrally for the second time at which level the educational standards of the Standing Conference in mathematics, biology, chemistry and physics and the natural sciences for the Mittlerer Schulabschluss were being achieved. The results were published in 2019 and show stability against the results of 2012 despite a more diverse school population. In all 16 Länder, a large proportion of pupils already meet grade 10 German performance expectations laid down in the KMK educational standards towards the end of grade 9.

Digitalisation

In 2016 the Standing Conference (KMK) presented a strategic concept for the future development of education in Germany with its “Education in the Digital World” strategy (https://www.kmk.org/fileadmin/Dateien/pdf/PresseUndAktuelles/2017/KMK-Strategie_Bildung_in_der_digitalen_Welt_Zusammenfassung_en.pdf, English summary) which applies to several levels of education (school education, higher education, continuing education). Integrating the digital changes in society into the teaching and learning process is an extremely complex undertaking. Measures have to be planned, coordinated and implemented simultaneously in several fields of action. The fields of action described in the strategy are:

1. Education plans and the development of teaching, curricular developments;
2. Initial, further and continuing education of educators and teachers;
3. Infrastructure and equipment;
4. Educational media;
5. E-government and school administration programmes, education and campus management systems;
6. Legal and functional framework.

Two key topics were identified for general schools: integration of “Competences for the digital world” into the curriculum through a binding cross-subject competence framework; and teaching and learning processes whose organisation is supported digitally. In the field of higher education, the strategy suggests measures such as expanding support structures; working with digital media as a natural part of an academic career; and creating campus-

connect solutions.

Support for developing the competence of teachers for pedagogical work in a digital world is regarded as an integral task of training in all academic subjects as well as education sciences throughout all phases of teacher training. The necessary competences are described in the strategy. The Standing Conference has updated its decisions on teacher training and on subject-related requirements as well as its standards for teacher training in the educational sciences accordingly.

The KMK strategy sets out the goal that every pupil should be able to use a digital learning environment and have access to the internet, wherever deemed useful in lessons from a pedagogical point of view, by the year 2021. The potentials of digitalisation should also be exploited in administration through new e-government offers as well as the expansion of education management systems, leading to electronic pupil records.

Through the DigitalPact for Schools 2019-2024 (DigitalPakt Schule, <https://www.digitalpaktschule.de/>) the Federation and the Länder aim to ensure that schools are better equipped with digital technology. The Federation supports the necessary infrastructure while the Länder ensure the development of the content and teacher training. The Pact's volume is 5.5 billion euros.

In the Covid-19 crisis, methods of distance learning/e-learning are being expanded until further notice for pupils (and students) who are currently unable to attend lessons.

Please refer to the 9th German periodic report for further information on policy measures to enhance educational quality.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)

☒ Initial training and continuous professional development is provided

☒ Minimum standards and qualifications are required for the teaching profession

☒ Measures taken to strengthen the social status and attractiveness of the teaching profession

☒ Performance monitoring systems

☒ Measures taken to increase women in leadership positions in education

☐ Other:

- Please briefly elaborate further on the measures taken:

Teachers are employed by the Länder either as public civil servants or as salaried

employees. In Germany there are six types of teaching careers:

1. teachers at primary schools;
2. teachers who cover both primary schools and all or individual types of schools at lower secondary level;
3. teachers for all or individual types of schools at lower secondary level;
4. teachers at upper secondary level (general education subjects) or at Gymnasium;
5. teachers at upper secondary level (vocational subjects) or vocational schools;
6. teachers at special schools.

Remuneration for all these teaching careers is in line with the corresponding grades in the upper and highest grades of the civil service. There is no discrimination during teacher training or during teachers' professional careers.

Following PISA 2000, teacher training was designated as one of the seven fields of action in which priority measures must be taken. The objective is to improve professionalism in teaching – particularly with regard to diagnostic and methodological skills. In this regard the Standing Conference (KMK) adopted "Standards for teacher training: educational sciences" in 2004 which have been implemented in the Länder. The Standing Conference has also formulated requirements with regard to the content of the subject-related studies and teaching methodologies common to the Länder. In addition, the Länder are increasing their efforts to train and employ teachers with a migrant background.

Against the background of the Bologna Declaration, the Länder have modularised the teacher training courses. Moreover, a greater focus has been placed on vocational aspects within teacher training (placements, semester-long internships). To an increasing extent consecutive study courses are being set up in teacher training which provide for components covering education studies and practical elements as early as the Bachelor phase.

Furthermore, the Standing Conference has revised the above-mentioned standards and common requirements for teacher training programmes with regard to the challenges of an inclusive school system and the challenges of digitalisation in education.

In March 2020 the Standing Conference adopted key points on the significance and design of the third phase of teacher training (continuing professional development/CPD). Recommendations include CPD objectives, framework conditions, formats, quality requirements and documentation.

Please refer to section II.2.5 for information on teacher training and digitalisation.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

X No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

X Curriculum includes human rights education

X Educational and/or extracurricular activities are organized on human rights education

☐ Other:

Taking into account current societal and political developments as well as the impact of digitalisation, the Standing Conference reviewed and updated its recommendation on education for democratic citizenship ("Democracy as objective, subject and practice of historical and political education in schools", https://www.kmk.org/fileadmin/Dateien/veroeffentlichungen_beschluesse/2009/2009_03_06-Demokratiebildung-engl.pdf.pdf, in English) in 2018.

In the same year, it also updated its recommendation on HRE in schools (https://www.kmk.org/fileadmin/Dateien/pdf/PresseUndAktuelles/2018/Beschluss_Menschenrechtserziehung.pdf, in German). HRE is considered a cross-subject issue and a central element of school life.

Please refer to the 9th German periodic report for detailed information about HRE in Germany.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes x No ☐

- Please provide a brief description:

Privately maintained institutions exist, to a greater or lesser extent, in all areas of education.

The right to establish private schools is expressly guaranteed by the Basic Law and, to some extent, by provisions in the constitutions of the individual Länder. The proportion of privately maintained schools varies considerably from Land to Land and for different types of schools. The main legal provisions for the establishment of privately maintained schools are the relevant provisions in the Education Acts and the special laws on privately

¹²

Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

maintained schools, as well as financial aid regulations in the form of laws and regulations of the Länder. Standard framework conditions in the Länder are guaranteed by an Agreement on Private Schools (Vereinbarung über das Privatschulwesen) of August 1951 which was drawn up by the Standing Conference (KMK). These schools are also under supervision of the state and general legal requirements must be observed.

Please refer to the 9th and 8th German periodic reports for detailed information on private schooling in Germany.

Concerning higher education, the federal legislation and the legislation of the Länder stipulate the minimum requirements to be satisfied if non-public institutions are to be recognised as institutions of higher education by the state. Official recognition by the respective Land is dependent on proof that the institution is of equivalent status to state HEIs.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes x No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

In the primary sector, privately maintained schools may only be established on very strict conditions. Privately maintained secondary schools that act as a substitute for a public school (Ersatzschulen) must not encourage segregation of pupils according to their parents' financial means. The schools must be approved by the state.

Please refer to the 9th and 8th German periodic reports for detailed information on private schooling in Germany.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes x No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

x Constitutional laws and/or legislation protect the right to education of national minorities

x Legislation or regulations guarantee the right of national minorities to study in their mother tongue

x Curriculum is adapted to national minority needs

¹³ See: Article/Paragraph 1(1).

x Teachers are trained to adapt to national minority needs

☐ Other:

- Please provide a brief description of the provisions:

Compulsory schooling applies to all children, irrespective of their origin or affiliation to a minority. There is no segregation according to minority status. German is stipulated by law as the official language of the administration and the judiciary. Education differs from administration and justice in that there are no legal provisions on the language of instruction. German is the regular language of instruction and training at general and vocational schools, as well as at institutions of higher education. Exceptions in the school sector include, apart from certain privately maintained schools, all bilingual schools and classes, as well as instruction and additional classes in the mother tongue for pupils whose native tongue is not German.

Germany has ratified both the Framework Convention for the Protection of National Minorities and the European Charter of Regional and Minority Languages of the Council of Europe. Minority languages recognised under the Charter are Danish, Frisian, Sorbian, Romany and Low German. For example, children belonging to the Danish minority in Schleswig-Holstein may attend privately maintained schools (Ersatzschulen) instead of the regular public schools if the educational objectives of these schools essentially correspond to those of the school types provided for in the Schleswig-Holstein Education Act. Lessons in these schools are taught in Danish. As a rule, German is a compulsory subject as of grade 2.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

See question above and section II.2.8 on private schooling.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

Compulsory schooling applies to all children, irrespective of their origin or residence status. The German Residence Act exempts educational institutions from the obligation to report pupils' residence status to the authorities.

Generally, persons with a refugee or asylum status may take up a course of study. Numerous integration initiatives are in place, for example the German Academic Exchange Service's Welcome and Integration programme. Please see below for further information.

Please refer to sections II.1.1 and II.2.3 for detailed information about legal/policy frameworks in school education and higher education.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

☒ Inclusion in mainstream education

☒ Provision of language courses

☒ Specific training for educational staff

☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

☒ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)

☒ Accelerated learning programmes

☒ Non-formal and/or alternative education programmes

☒ Financial support

☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

School education

In Germany, access to school education is guaranteed for all children of asylum seekers, regardless of immigration status or the length of their stay. Compulsory education is regulated by the school laws of the Länder. The regulations of compulsory education also apply for children of asylum seekers, usually after their residential assignment to a local authority. Moreover, young refugees have the right to attend school regardless of residence status.

Children of refugees and unaccompanied minors, like all other children without any knowledge of German, are usually taught German in so-called preparatory courses or special classes first while the primary objective is a rapid transition to regular lessons. At the same time, the minors also already attend some regular classes to prepare this transition, for example sports, music or art classes. Other Länder aim for swift integration

into the regular classes while allocating additional language support.

An important element for the quality development of language integration is the introduction of the German Language Diploma of the Standing Conference (DSD) in several German Länder. Through the DSD, an excellent collaboration on language and integration matters has been established among the Länder.

Schools cannot tackle all challenges alone. The Länder, communities and schools cooperate with the youth social work and public health authorities, among others. Support systems of school social work have been established in recent years at many schools with special social challenges.

It is another key objective of the Länder to enable refugees to successfully take up vocational education and training (VET). Many vocational schools and continuing education providers offer specific educational programmes to prepare young people for VET. Refugees who enter VET receive individual support and funding opportunities. Here, the Länder rely on the support of regionally based chambers, employers' associations, unions and training centres of the social partners; they also cooperate with the federal government and the Federal Employment Agency at the interface between school and work.

Higher education

Various efforts are being made by the Länder and/or individual HEIs to facilitate access to higher education for refugees, for example by offering scholarships, counselling and orientation services, study preparation programmes, and German language tuition.

- 1) The Standing Conference (KMK) has adopted joint decisions on the purpose of integrating refugees in the higher education sector. Already in 2015, it agreed on a common procedure for applicants who, due to their flight, are unable to provide original or certified copy of their higher education entrance qualification obtained in their home country. These applicants will be allowed to provide evidence in a specific procedure. It includes determining applicants' personal premises on the basis of refugee and legal residence status;
- 2) checking the credibility of their school and academic career; and
- 3) conducting an examination and/or assessment procedure.

The Standing Conference furthermore adopted a decision in 2016 which outlines possibilities to reduce enrolment fees for refugees.

Important information on the issue of refugees in higher education was collected in a brochure published in 2016 by several stakeholders, including the Standing Conference. It offers guidance for university staff and people working at associations for student affairs.

Germany, through the Central Office for Foreign Education (ZAB), is participating in the second phase (2018-2020) of the Council of Europe's European Qualifications Passport for Refugees (EQPR). While the EQPR is not a formal recognition document, refugees without official documentation may use it to provide information about their qualifications, work experience and language proficiency. Passes are issued after interviews/evaluation sessions with experts.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

X Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

According to PISA findings, one of the greatest challenges of the German education system remains overcoming the dependence of educational success on social background and to give all learners the best educational opportunities in school, work or higher education. This affects, above all, young people from migrant families. The challenge of mitigating the educational divide becomes even more relevant during the current Covid-19 crisis. Demographic change, too, represents a major challenge for the German education system, given the rapidly evolving international environment.

Educationally disadvantaged students are underrepresented at German universities. Additionally, women are underrepresented in high-ranking or executive positions, although the number of women in general is increasing in all fields of higher education and in science institutions. Overall, further efforts are necessary to reduce social and gender-specific selection.

Against the background of demographic developments, Germany must make a sustained effort to fully harness all of the skills of its population. Improving permeability within and between the educational areas and the recognition of skills which have already been acquired (recognition of prior learning) are central concerns, also with a view to promoting equal opportunity.

Please also refer to sections II.1.3 and II.2.10 (refugees/migrants).

X Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

Teacher shortage forecasts have been exacerbated by increasing birth rates, strengthened individual learner support, the implementation of inclusive education, the expansion of all-day schooling and large migration flows in 2015/16. While differences exist depending on teacher career types and subject-specific demand, the issue of unfilled teaching positions will remain a challenge across all Länder, especially for the teaching type/career „upper secondary education (vocational subjects) and vocational schools“ – above all in Eastern Germany –, as well as for special school teachers. Teaching positions also remain unfilled at lower secondary and primary level.

The Länder have reacted by increasing teacher training capacities as well as by implementing short-term measures such as increasing part-time teaching, reallocating and seconding/delegating teachers, recalling retired teachers, and allowing flexible entry dates. Some Länder have also increased the starting salary for primary school teachers to make the profession more attractive.

Concerning digitalisation, the Länder work to meet the objective of fully implementing digital learning by 2021. Apart from providing the relevant infrastructure and fast internet connections for schools they will also continue to invest in initial and continuing teacher training. Due to the current Covid-19 crisis and as schools are only partly re-opened, the

federal government is financing digital devices for students from disadvantaged social backgrounds with an additional amount of 500 million euros. Methods of distance learning/e-learning are being expanded until further notice for pupils (and students) who are currently unable to attend lessons.

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

Please refer to section II.1.3 and to the 9th German periodic report for further information and measures taken from 2000.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

X Other:

The bodies of the Standing Conference (KMK), among them the School Committee, the VET Committee and the Higher Education Committee, regularly address issues related to non-discrimination, such as the various support strategies/initiatives or HRE. Their decisions have no legal force but are commonly transferred into the policies and law of the Länder. In this way, the Standing Conference, along with the federal government and the governments of the Länder, helps to focus the attention of education institutions on questions related to non-

discrimination.

The Federal Agency for Civic Education (bpb) works on issues related to the right to education, educational justice and the causes of educational disadvantage. The Federal Agency contributes to raising public awareness and providing relevant information for multipliers in the education sector and the public. To this end, it analyses the complex relationship between educational opportunities and social challenges such as social inequality, racism, exclusion dynamics and debates on inclusion and integration. The core messages of the UNESCO Convention are conveyed and debated through the Agency's print products, events, grants and online services.